

		accounting and stole tools from the business without permission of the other 50% shareholder. As such, the claim for violation of the UCL is sufficiently pled and the demurrer is OVERRULED. Seventh Cause of Action- Theft under Penal Code § 496 Defendant cites to the elements of theft and a description of the crime of theft, only to reach the conclusion that “such conclusory allegation fails as to BRUNS” with no further argument or elaboration. The Complaint alleges Defendant “took tools and equipment outside the scope of Plaintiff’s permission”, that the “theft of tools and equipment was not permitted or consented to by Plaintiff KBNJ, Inc.” and that Defendant also “took money belong [sic] to the corporation”. These are not conclusory allegations, but rather factual allegations supporting Plaintiff’s assertion of a cause of action for theft under Penal Code § 496. Accordingly, the demurrer is OVERRULED. Ninth Cause of Action- Declaratory Relief “To qualify for declaratory relief, [a party] would have to demonstrate its action presented two essential elements: ‘(a) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions related to [the party’s] rights or obligations.’” (<i>Jolley v. Chase Home Finance, LLC</i> (2013) 213 Cal.App.4th 872, 909, quoting <i>Wilson & Wilson v. City Council of Redwood City</i>, (2011) 191 Cal.App.4th 1559, 1582). Defendant asserts that here, the controversy as to any money taken by Defendant is not ripe, however Defendant does not elaborate on this position. As such, the demurrer is OVERRULED. Moving party is ordered to give notice of this ruling.
8	30-2022-01281322 Bruns vs. Johnson	Case Management Conference Only
9	30-2022-01295439 Hensley Electric, Inc. vs. RND Genetics, LLC	The Opposition by judgment creditor Hensley Electric, Inc. to the Claim of Exemption filed by judgment debtor Richard Santos is DENIED. Here, debtor Richard Santos is making a claim of exemption under CCP §706.051. Pursuant to Code of Civil Procedure section 706.105, subdivision (a), a Judgment Debtor may

		claim an exemption under section 706.051 where, as here, there has been no prior hearing with respect to an earnings withholding order. (Code of Civ. Proc., §706.105, subd. (a)(1).) A claim of exemption is made by filing with the levying officer a claim of exemption and a financial statement. (Code Civ. Proc., §706.105, subd. (b).) A Judgment Creditor who wishes to contest the claim of exemption, must file a notice of opposition to the claim of exemption, within 10-days of service, by the levying officer, of the notice of claim of exemption. (Code Civ. Proc., §706.105, subd. (d)). Likewise, a “notice of motion for an order determining the claim of exemption” must be filed with the court within the same time period, i.e. “within 10 days after the date the levying officer mailed the notice of claim of exemption.” (Code Civ. Proc., §706.105, subd. (e)). (This 10-day period is not extended where the claim of exemption was served by mail; see CCP § 684.310 and Comment to CCP § 706.105.) Here, the Claim of Exemption was signed by the Judgment Debtor on July 7, 2023. (Exh. 2 to Opposition) Per Exhibit 2 to the Notice of Opposition, the Notice of Filing of Claim of Exemption was mailed to counsel for the Judgment Creditor on 7/12/23. The mandatory Notice of Opposition and Notice of Hearing were not filed until 7/31/23, which is untimely pursuant to CCP §706.105(e). (ROA Nos. 43 and 44.) In his supplemental papers, the judgment creditor, while conceding that the Notice contained the statutes related to wage garnishment, claims, without any authority, that this matter was actually a bank levy, not a wage garnishment, and, thus, an additional ten days is permitted for filing. (Code of Civil Procedure §§ 703.550(a), 684.120(b)). The court does not agree as claims of exemption are statute bound and levying officers need to know when to release the funds to the debtor. Forcing the levying officer to analyze the papers to determine which of perhaps several exemption statutes actually apply would create situations just like this one – where funds were released to the debtor and need to be recovered by special court orders. Here, the judgment creditor had a remedy of simply taking the claim of exemption at face value and responding to it within the time frame relevant to the statutes claimed (perhaps pointing out that the funds held are actually a bank levy). Given the fact that the levying officer is going to respond based on the
--	--	---

		claimed statutes, the judgment creditor fails to do so at its peril. Accordingly, Judgment Creditor's notices are untimely and pursuant to the authority stated above, there can be no claim of exemption hearing. The hearing on Judgment Creditors' opposition to Debtor Richard Santos' claim of exemption is denied. As Hensley states that the money levied from the Kinecta account has been distributed to Santos, the Court makes no further order regarding the levying officer or disposition of the funds. Debtor Richard Santos is ordered to give notice.
10	30-2023-01300343 Villa vs. General Motors, LLC	Plaintiff Manuel Villa's motion to compel the deposition of defendant General Motor's person(s) most knowledgeable is GRANTED. The deposition categories and requests for production of documents shall be consistent with the court's Case Management Conference Order dated 02/17/23. (ROA 20.) As noted in the Case Management Conference Order, a party may seek to modify and/or delete any of these orders, via noticed motion, upon showing of good cause. The deposition shall take place on a mutually agreeable date, time and location, no later than 40 days from the date of this order. The parties may stipulate in writing to a date beyond 40 days. Plaintiff's request for sanctions is GRANTED in the amount of \$625 (1 hr. at \$565/hr, plus \$60 mtn fee) to be paid within 60 days' notice of this ruling. Moving Party is ordered to give notice of this ruling.
11	30-2023-01303813 Orosco vs. Heydari	<u>I. Demurrer</u> The Demurrer to the Complaint filed by Defendant Atefah Heydari ("Defendant") is SUSTAINED with 20-days leave to amend as to the second, third, fourth, fifth, and sixth causes of action, and OVERRULED as to the first cause of action. Cause of Action 1: Breach of Contract